

20STCV47127 20STCV47127

County: los-angeles

Division: Civil Law and Motion

Department: I

Hearing date: 2026-07-10

Motion: PLAINTIFFS' MOTIONS TO COMPEL SILVERADO SENIOR LIVING MANAGEMENT, INC.'S FURTHER RESPONSES

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Case Number: 20STCV47127 Hearing Date: July 10, 2026 Dept: I

SUPERIOR

COURT OF THE STATE OF CALIFORNIA

COUNTY

OF LOS ANGELES

CATHERINE APOTHAKE, by and through her Successor in
Interest HELENA APOTHAKE; HELENA APOTHAKE, individually; and JONATHAN
APOTHAKE, individually;

Plaintiffs,

vs.

SILVERADO SENIOR LIVING, INC.; SILVERADO SENIOR
LIVING MANAGEMENT, INC.; SUBTENANT 330 NORTH HAYWORTH AVENUE, LLC; LOREN
SHOOK, individually; JASON RUSSO, individually; and DOES 1 to 25, inclusive,

Defendants.

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CASE

NO: 20STCV47127

[TENTATIVE]

ORDER RE: PLAINTIFFS' MOTIONS TO COMPEL SILVERADO
SENIOR LIVING MANAGEMENT, INC.'S FURTHER RESPONSES

Dept.

I

DATE:

JULY 10, 2026

TIME: 8:30 A.M.

COMPLAINT

FILED: DECEMBER 9, 2020

TRIAL

DATE: NONE

I.

BACKGROUND

On

December 9, 2020, Plaintiffs Catherine Apothaker, by and through her successor-in-interest Helena Apothaker, Helena Apothaker, and Jonathan Apothaker (collectively "Plaintiffs") filed a complaint against Silverado Senior Living, Inc., Silverado Senior Living Management, Inc., Subtenant 330 North Hayworth Avenue, LLC, Loren Shook, Jason Russo, and Does 1 to 25 alleging two causes of action: (1) elder abuse and neglect; and (2) wrongful death.

On

June 17, 2026, Plaintiffs filed the instant motion to compel Silverado Senior Living Management, Inc. (hereinafter "Defendant")'s further responses to Form Interrogatories, Set One, and Special Interrogatories, Set One.

On

June 26, 2026, Defendant filed its opposition.

On

July 2, 2026, Plaintiffs filed their reply.

On

July 2, 2026, the parties filed a joint statement of items still in dispute regarding the instant motion.

II.

LEGAL

STANDARD

Interrogatories

Cal.

Code of Civ. Proc. § 2030.300 provides, in pertinent part, that “[o]n receipt of a response to interrogatories, the propounding party may move for an order compelling a further response if the propounding party deems that any of the following apply: (1) An answer to a particular interrogatory is evasive or incomplete. (2) An exercise of the option to produce documents under Section 2030.230 is unwarranted or the required specification of those documents is inadequate. (3) An objection to an interrogatory is without merit or too general.” (CCP § 2030.300(a).)

Unless

notice of a motion to compel further responses is given within 45 days of the service of the verified response, or any supplemental verified response, or on or before any specific later date to which the propounding party and the responding party have agreed in writing, the propounding party waives any right to compel a further response. (CCP § 2030.300(c).)

Sanctions

The

court shall impose a monetary sanction under Chapter 7 (commencing with CCP § 2023.010) against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel further response to a demand, unless it finds that the party acted with substantial justification. (CCP §§ 2030.300(d), 2031.310(h), and 2033.280(c).) Under California law, the objecting party has the burden of justifying its objections when the propounding party requests that the Court order further responses. (Coy v. Superior Court (1962) 58 Cal.2d 210, 220-221.) Further, under CCP § 2023.010, it is a misuse of discovery to make unmerited objections. (CCP § 2023.010(e).)

III.

DISCUSSION

Meet and Confer Requirement

A motion to compel further responses

shall be accompanied by a meet and confer declaration. (CCP §§ 2030.300(b)(2).)

On January 28, 2026, Plaintiffs' counsel sent defense counsel a meet and confer letter. (Hutchins Decl. ¶ 4; Exh. E.) On May 8, 2026, the parties met and conferred telephonically. (Id. at ¶ 7.) On May 13, 2026, Defendant served supplemental responses. (Ibid.; Exhs. G-H [responses].) However, finding some responses still defective, Plaintiffs' counsel followed up on May 20, 2026. (Id. at ¶ 8; Exh. I [meet and confer].) Accordingly, the Court finds that Plaintiffs satisfy the meet and confer requirements of CCP § 2030.300(b)(2).

Notably,

on July 2, 2026, the parties filed a joint statement identifying which items are still at issue. The Court now addresses the remaining issues as identified by the joint statement. (See Joint Statement.)

Analysis

Plaintiffs seek to compel Defendant's

further responses to Form Interrogatories, Set One, No. 12.1. (See Joint Statement.) No. 12.1 seeks contact information for identified percipient witnesses, including Patient Zero's daughters. (Ibid.) Defendants argue that they have a duty to keep this information confidential absent a court order. (Ibid.) Plaintiffs argue that "[b]oth daughters were involved in the placement of Patient Zero at Silverado Beverly Place and are key percipient witnesses and therefore their contact information is discoverable." (Separate Statement at 26:2-10.)

The

Court finds good cause to compel this information. The gravamen of this action rests with Defendant's admittance of a 69-year-old patient in March 2020, allegedly resulting in a COVID-19 outbreak at Defendant's facilities. (See Motion at 1:3-14.) Patient Zero is no longer available and his daughters may provide information regarding his admittance. Defendant fails to identify any privacy right violated by providing the daughters' contact information.

Based on

the foregoing, Plaintiff's motion is granted as to Form Interrogatories, Set One, No. 12.1 and Special Interrogatories, Set One, No. 35.

Next, Plaintiffs seek to compel further responses to Special Interrogatories, Set One, Nos. 6-7, 24, and 36.

Special

Interrogatories Nos. 6-7 and Special Interrogatory No. 35 ask Defendant to define its relationship to Co-Defendants Silverado Senior Living, Inc. and Subtenant 330 North Hayworth Avenue, LLC. (See Joint Statement.)

"Plaintiff contends that Defendant may not claim ignorance as to its own relationship with Silverado Senior Living, and that it has a duty to make reasonable efforts to obtain the answer from sources within its control . . ." (Ibid.)

The

Court agrees. Plaintiffs' motion is granted as to Special Interrogatories, Set One, Nos. 6-7.

Special

Interrogatory No. 24 asks Defendant to "identify all documents that reflect or memorialize the information available to the individuals who made the decision to allow PATIENT ZERO to move into SILVERADO BEVERLY PLACE at the time that decision was made." (Joint Statement at 6:6-14.) "Defendant contends that its responses . . . identifying Patient Zero's medical records from his treating physicians at Mount Sinai Hospital, and his chart from Silverado – Beverly Place, are sufficient . . . and that any other responsive documents are protected by privilege and/or privacy. Plaintiffs contend that any intake, referral, and admission records, including emails and text messages, generated in the ordinary course of business should be identified." (Ibid.)

The

Court agrees that production of any intake, referral, and admission records are reasonably calculated to lead to admissible evidence. For example, inter alia, they may address Defendant's risk assessment in admitting Patient Zero. Furthermore, Defendant fails to identify the relevant privilege or provide a privilege log.

Based on

the foregoing, Plaintiffs' motion is granted as to Special Interrogatories, No. 24.

Finally,

No. 36 asks Defendant to state how much it was paid upon move-in for Patient Zero. (Joint Statement at 5:26-6:4.) Defendant states that this amount is “unknown.” (Ibid.) “Plaintiffs allege that Defendant made a conscious decision to prioritize revenue over the safety of its elderly, vulnerable residents by admitting a COVID-19-positive patient traveling from the epicenter of the pandemic in New York – a decision that resulted in the deaths of multiple residents, including the plaintiffs’ decedents . . .” (Separate Statement at 33:23-34:4.) Defendant states that it “does not receive payment per patient move in.” (Id. at 35:13-15.) However, this answer still leaves room for ambiguity as it does not affirmatively state that no money was in fact received, or was, for Patient Zero in particular.

Based on

the foregoing, Plaintiffs’ motion is granted as to Special Interrogatories, Set One, No. 36.

Sanctions

Plaintiffs

request sanctions in the amount of \$6,360.00, representing a \$60.00 filing fee and seven hours of work at the hourly rate of \$900.00. (See Hutchins Decl. at ¶ 11.) The Court finds this amount excessive considering the good faith meet and confer efforts resulting in a substantial narrowing of the issues and reduces sanctions to \$3,060.00.

IV.

CONCLUSION

Plaintiffs’

motion to compel Defendant’s further responses is GRANTED in its entirety.

Defendant

is to serve further, verified, substantive, code-compliant, objection-free responses to Plaintiffs’ Form Interrogatories, Set One, No. 12.1 and Special Interrogatories, Set One, Nos. 6-7, 24, 35 and 36 within 20 days of this order.

Additionally,

Defendant and its counsel, jointly and severally, are to pay Plaintiffs’

counsel sanctions in the amount of \$3,060.00 within 20 days of this order.

Moving party is ordered to give notice.

Dated: July____,

2026 _____

Hon. Karen Moskowitz

Judge of the Superior

Court